

OFF-PREMISES TRACK

Montana RASS Off-Premises Full Course Content

Regulator review copy with lesson text, infographics, module quizzes, answer keys, and final exam preview.

60-minute minimum.

6 modules.

25-question final exam.

How to read this PDF

This PDF is organized in course order. Each module includes the student-facing lesson content first, then quiz questions and correct answers. The final section contains the final exam question pool with correct answers highlighted for regulator review.

Module 1: Welcome and Course Overview

What to expect from your Montana RASS Off-Premises training

Welcome

S1-C1 | TEXT

Welcome to CertReady's Montana Responsible Alcohol Sales and Service training, the off-premises track. Over the next hour you'll learn the practical knowledge and Montana-specific law you need to sell alcohol legally and safely at a grocery store, c-store, or any other off-premises retailer.

Outcomes: K1

S1-C1B | CALLOUT

About 'RASS'. RASS stands for Responsible Alcohol Sales and Service. As of January 1, 2026, the Act is officially named the Responsible Alcohol Sales, Service, and Delivery Act (HB 211 added 'Delivery' to cover third-party drivers), but the industry still calls the program RASS.

Outcomes: K1

S1-C2 | CALLOUT

MCA 16-4-1006(2)(b): Off-premises training programs must be at least HALF the time of on-premises programs. With the on-premises track at 2 hours, the off-premises track is 1 hour. The course holds the final exam locked until you've spent the full 60 minutes on content.

Outcomes: K1

S1-C4 | CALLOUT

Did your employer sign you up? If your store or chain is using CertReady, they have a business dashboard at certready.org/business. They can see your training progress in real time, get notified when you pass, and see your expiration date so they can remind you when it's time to renew. You don't need to do anything for this; if they enrolled you with their CertReady code, the link is already set up. You'll still get your own copy of the certificate by email.

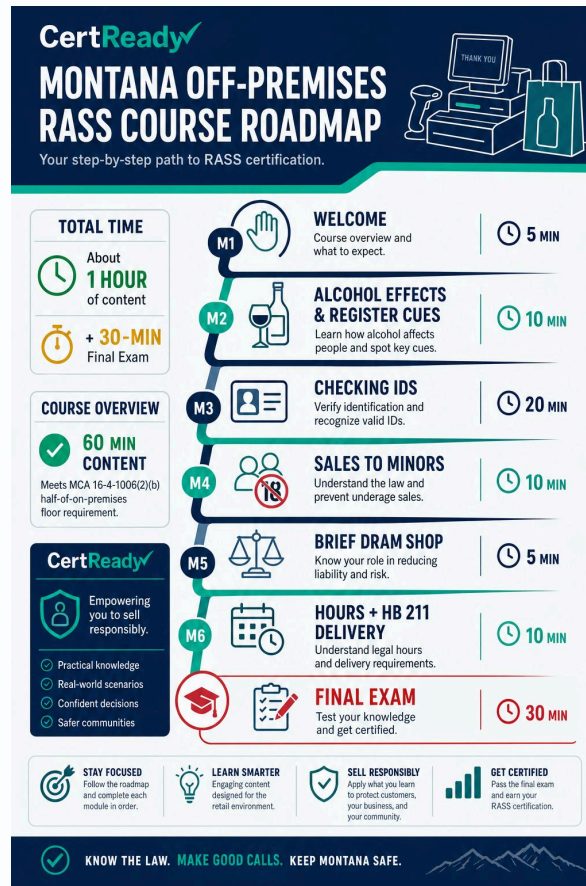
Outcomes: K1

S1-C3 | TEXT

What's different about off-premises? You're at a register. Most decisions happen in seconds: Is this ID real? Is the customer 21? Are they a proxy buyer for a minor outside? Can I sell beer at this hour? The off-premises track focuses on register-side judgment and the new HB 211 third-party delivery overlay.

Outcomes: K1

What's covered



MT ALCOHOL OFFSALE M01 s2 c1

Module 1 Quiz

Passing score: 80%

Q1 | MULTIPLE_CHOICE

How long is the off-premises RASS track minimum?

Options

1. a. 30 min
2. ☒ b. 1 hour **Correct**
3. c. 2 hours
4. d. 4 hours

Correct answer: b. 1 hour

Outcomes: K1

Q2 | MULTIPLE_CHOICE

When must a new off-premises employee complete training (MCA 16-4-1005)?

Options

1. a. Before first shift
2. b. Within 30 days
3. ☒ c. Within 60 days **Correct**
4. d. Within 90 days

Correct answer: c. Within 60 days

Outcomes: K1

Q3 | MULTIPLE_CHOICE

Off-premises training in Montana must be at least half the time of on-premises training.

Options

1. ☒ true. True **Correct**
2. false. False

Correct answer: true. True

Outcomes: K1

Q4 | MULTIPLE_CHOICE

How often must Montana RASS training be renewed?

Options

1. a. Annually
2. b. Every 2 years
3. **c. Every 3 years Correct**
4. d. Every 5 years

Correct answer: c. Every 3 years

Outcomes: K1

Module 2: Alcohol Effects and Spotting Impaired Purchasers at the Register

How to recognize a customer who's already had too much when they walk up to buy more

What counts as alcohol

S1-C1 | TEXT

Montana defines an alcoholic beverage as anything **over 0.5% alcohol by volume** (MCA 16-1-106(4)). At an off-premises register, that means every product on the alcohol shelves and several that look like soft drinks but aren't.

Outcomes: K3

S1-C2 | LIST

**MONTANA**

**OFF-PREMISES ALCOHOL
PRODUCT CATEGORIES**

REGISTER-SIDE REFERENCE CARD FOR CLERKS

**What you'll
ring up that
COUNTS AS
ALCOHOL**

1 BEER  Includes all malt beverages intended for off-premises consumption. Typical ABV 3-12%	2 WINE  Includes table wine, fortified wine, sparkling wine, and fruit wine. Typical ABV 8-15%	3 HARD SELTZER  Spiked sparkling water with alcohol. ABV 5-9%+	4 HARD CIDER  Fermented apple beverage with added alcohol. ABV 4-7%
5 READY-TO-DRINK / RTDs  Pre-mixed alcoholic beverages (e.g., cocktails, vodka soda, margarita). MAY OR MAY NOT BE AUTHORIZED — Check store's approved list.	6 HARD KOMBUCHA  Alcoholic kombucha contains alcohol. ALCOHOLIC ABV 3-9% NON-ALCOHOLIC <0.5% ABV	7 SPIRITS  NOT sold at grocery/ c-store — agency liquor store only. DO NOT RING UP AT REGISTER	QUICK CHECK If it has alcohol by volume (ABV), it counts as alcohol. ALWAYS VERIFY ID It's the law. When in doubt, ask for ID. WHEN IN DOUBT, DON'T RING IT UP. Ask a supervisor or check the store's approved list.

**YOU PLAY A KEY ROLE IN KEEPING ALCOHOL OUT OF MINORS' HANDS.**
Thank you for selling responsibly.

CertReady™ | Montana Responsible Alcohol Sales & Service Training
KNOW THE LAW | CHECK ID | PREVENT UNDERAGE ACCESS

MT ALCOHOL OFFSALE M02 s1 c2

Outcomes: K3

S1-C3 | CALLOUT

The 0.5% line in practice. Anything you scan that has "alcohol by volume" on the label, with a number above 0.5%, triggers the rules in this course: ID check, sale-to-intoxicated rule, hours, sealed-container rules. "Non-alcoholic beer" at 0.4% does not. **Read the label if you're not sure.**

Outcomes: K3

The Montana standard at the register

S2-C1 | CALLOUT

Montana uses TWO parallel statutory tests for refusing an alcohol sale, and both apply at the register.

MCA 16-3-301(4)(b)

the three-prong test. It is unlawful to sell alcoholic beverages to a person who is **'actually, apparently, or obviously intoxicated.'**

MCA 16-6-304

a separate, broader prohibition. It bars a person, including a licensee and a licensee's employees, from selling, serving, or giving an alcoholic beverage to a person who is **'apparently under the influence of alcohol'** (a single-prong test).

The two statutes work together: refuse if either standard is met. Both rules cover off-premise retail sales

there is no carve-out for cashiers.

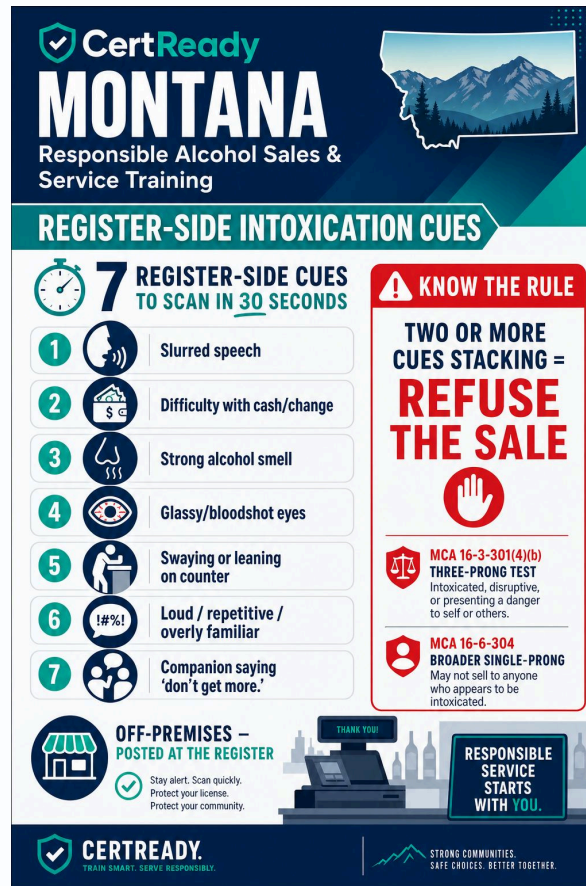
Outcomes: K4

S2-C2 | TEXT

Both standards apply to off-premise retail sales, but the practical test at the register is the same as in a bar: **what a reasonable cashier would conclude from what they see in the 30 seconds the customer is at your register.** Under 16-3-301(4)(b) you refuse if the customer is **actually** impaired (even if subtly), **apparently** impaired to a reasonable observer, or **obviously** impaired in the loud-falling-down sense. Under 16-6-304 you refuse on the broader single-prong test - anyone **apparently under the influence. If a customer in your line is slurring, swaying, or smells strongly of alcohol, you cannot sell them another six-pack** under either statute.

Outcomes: K4

S2-C3 | LIST



MT ALCOHOL OFFSALE M02 s2 c3

Outcomes: K2, K4

S2-C4 | CALLOUT

One sign isn't enough; a pattern is. A single cue could be allergies, exhaustion, or just how that person normally talks. The Montana 'apparent' standard

present in both MCA 16-3-301(4)(b) and MCA 16-6-304

is met when **two or more cues stack at the same time**: slurring AND swaying, glassy eyes AND repetitive talk, smell-of-alcohol AND difficulty counting change. Watch for the cluster.

Outcomes: K4

Refusing the sale

S3-C1 | TEXT

If you spot the cues, the script is short. **"I can't sell this to you tonight, sorry. The law's on me."** Don't debate. Don't justify. Don't argue. If they push, call your manager. Document the refusal in the store's incident log.

Outcomes: K4

S3-C2 | LIST

Outcomes: K4

S3-C3 | CALLOUT

"The law's on me." This phrase shifts the refusal away from you-versus-them. It's a legal floor, not a personal judgment. Most customers walk away. **The ones who escalate are the ones for whom you call the manager** - that's the manager's job, not yours.

Outcomes: K4

S3-C4 | CALLOUT

Document every refusal. A short note in the store's incident log:

Date and time

Customer description (gender, age range, what they were buying)

Cues you observed (slurring, smell, etc.)

What you said and what they did next

Your initials If the customer leaves and gets in a crash, your incident-log entry is the store's first line of defense under the Montana sale-to-intoxicated rule.

Outcomes: K4

Two scenarios at the register

S4-C1 | SCENARIO

What's the right call?

Scenario 1: The 11 p.m. customer. A customer comes to your register at 11 p.m. with a 24-pack of Bud Light. He smells strongly of alcohol. He's slurring slightly when asking the price. His friend in the line behind him says, "You don't need any more, man."

Options

1. **a.** Sell it - he's at the register, not driving.
2. **b.** Refuse: "I can't sell this tonight, sorry. The law's on me." Document the refusal. Offer to ring up the rest of his items.
3. **c.** Sell it but tell him to take a Lyft home.
4. **d.** Sell only a six-pack instead of the 24-pack.

Outcomes: K4, K2

S4-C2 | SCENARIO

What's the right call?

Scenario 2: "It's for my friend." Two customers walk in together. One looks fine. The other is swaying and silent, leaning on a chip rack. The fine-looking one comes to the register with a 12-pack of beer and says, "It's for him - he's having a rough night," gesturing at the swaying friend.

Options

1. **a.** Sell it. The customer at the register isn't intoxicated.
2. **b.** Refuse politely. "I can't sell this if it's for him tonight. I can sell you something for yourself if you'd like."
3. **c.** Sell it but tell the friend not to drink it tonight.
4. **d.** Sell it; ID-check the swaying friend if you can.

Outcomes: K4

How much is 'too much' - the standard-drink math you can sanity-check at the register

S5-C1 | TEXT

The standard drink is a unit, not a beverage. US guidance defines one standard drink as **0.6 fl oz of pure ethanol**, which works out to about **12 oz of 5% beer**, **5 oz of 12% wine**, or **1.5 oz of 40% (80 proof) spirits**. The numbers matter at the register because customers buy in containers that are sometimes far more than one standard drink: a 22-oz craft IPA at 8% ABV is roughly 2.9 standard drinks; a 16-oz can of an 8.5% hard seltzer is roughly 2.3; a 750mL bottle of 40% spirits is about 17. A customer who already shows two or three intoxication cues and is buying multiples of any of those is buying for a context where the BAC is going to rise quickly. **Montana's per-se DUI threshold under MCA 61-8-1002 is 0.08 for noncommercial drivers (0.04 commercial, 0.02 under-21).** A 180-lb adult male drinking on an empty stomach reaches roughly 0.08 BAC after about four standard drinks in an hour; a 130-lb adult female reaches the same threshold after about three. The math is not exact

food, body composition, sleep, and medication change it

but the cashier's job is not to calculate the precise BAC. The cashier's job is to refuse when the **apparent** intoxication cues stack, before the customer leaves the store with the next round.

MONTANA STANDARD-DRINK REFERENCE CARD FOR OFF-PREMISE CASHIERS

ONE STANDARD DRINK = 0.6 FL OZ OF PURE ETHANOL

1 STANDARD DRINK EQUIVALENTS

- 12 OZ OF 5% BEER = 1 STANDARD DRINK
- 5 OZ OF 12% WINE = 1 STANDARD DRINK
- 1.5 OZ OF 40% (80 PROOF) SPIRIT = 1 STANDARD DRINK

2 COMMON OFF-PREMISE CONTAINERS

- 22 OZ IPA 5% ABV**
Calculation: $22 \text{ oz} \times 0.05 = 1.10$
 $1.10 \div 0.6 = 1.83$
≈ **1.8** STANDARD DRINKS
- 16 OZ SELTZER 5% ABV**
Calculation: $16 \text{ oz} \times 0.05 = 0.80$
 $0.80 \div 0.6 = 1.33$
≈ **1.3** STANDARD DRINKS
- 750 mL SPIRIT BOTTLE 40% ABV (80 PROOF)**
Calculation: $25.4 \text{ fl oz} \times 0.40 = 10.16$
 $10.16 \div 0.6 = 16.93$
≈ **16.9** STANDARD DRINKS

BAC 0.08 THE LEGAL LIMIT

0.08 BAC ≈

- 4 DRINKS IN 1 HOUR** FOR 180 LB MALE
- 3 DRINKS IN 1 HOUR** FOR 130 LB FEMALE

INDIVIDUAL FACTORS (BODY COMPOSITION, AGE, METABOLISM, FOOD, MEDICATIONS, ETC.) CAN SIGNIFICANTLY AFFECT BAC.

CertReady MONTANA RESPONSIBLE ALCOHOL SALES & SERVICE TRAINING

MODULE 02 HOW MUCH IS 'TOO MUCH'—THE STANDARD-DRINK MATH YOU CAN SANITY-CHECK AT THE REGISTER.

KNOW THE MATH. | CHECK THE FACTS. | PROTECT YOUR COMMUNITY.

MT ALCOHOL OFFSALE M02 s5 c1

Outcomes: K2, K3, K4

S5-C2 | CALLOUT

Why an off-prem cashier should care about the BAC math. Off-prem retail doesn't have a server bringing the next drink

the customer takes it home. That means a single off-prem sale to an already-impaired customer can fuel hours of additional drinking with no professional check-in in between. The Montana 'apparent intoxication' standard at MCA 16-6-304 applies the same way at a convenience-store register as it does at a bar pour: a single visible cue may not be enough, but a cluster (smell + slurring + difficulty counting cash) meets the standard. The cashier who refuses at this point is preventing the BAC trajectory the math above describes

and is also the last person who could have prevented it.

Outcomes: K4

Module 2 Quiz

Passing score: 80%

Q1 | MULTIPLE_CHOICE

What makes a beverage 'alcoholic' under Montana law?

Options

1. **a. More than 0.5% ABV** **Correct**
2. b. More than 1% ABV
3. c. More than 3.2% ABV
4. d. More than 5% ABV

Correct answer: a. More than 0.5% ABV

Outcomes: K3

Q2 | MULTIPLE_CHOICE

Which standard does Montana use at the point of sale?

Options

1. **a.** BAC over 0.08
2. **b.** Actually, apparently, or obviously intoxicated **Correct**
3. **c.** Visibly impaired only
4. **d.** Unable to drive

Correct answer: b. Actually, apparently, or obviously intoxicated

Outcomes: K4

Q3 | MULTIPLE_CHOICE

Which is NOT a register-side cue of intoxication?

Options

1. **a.** Difficulty counting change
2. **b.** Strong smell of alcohol
3. **c.** Asking the price of an item **Correct**
4. **d.** Swaying or leaning on the counter

Correct answer: c. Asking the price of an item

Outcomes: K4

Q4 | MULTIPLE_CHOICE

If a customer at your register seems intoxicated but says they're 'fine,' you can sell them alcohol.

Options

1. **true.** True
2. **false.** False **Correct**

Correct answer: false. False

Outcomes: K4

Q5 | MULTIPLE_CHOICE

A sober customer tells you the alcohol they're buying is for their obviously-intoxicated friend. What's the right call?

Options

1. **a.** Sell it - the customer at the register isn't intoxicated
2. **b.** Refuse the proxy purchase; offer to sell only to the person at the register for themselves **Correct**
3. **c.** Sell only half the quantity
4. **d.** Sell it but ID-check the friend

Correct answer: b. Refuse the proxy purchase; offer to sell only to the person at the register for themselves

Outcomes: K4

Q6 | SHORT_ANSWER

Write a one-line refusal script you would use on an apparent-intoxicated customer at the register.

Outcomes: K4

Module 3: Checking Identification (Including Digital IDs)

Montana's acceptable ID list per ARM 42.13.902, with HB 196 digital IDs and tribal IDs - register edition

Acceptable IDs in Montana

S1-C1 | TEXT

Montana **ARM 42.13.902** is a closed list. Anything not on it, you don't accept - even if it has a photo, a DOB, and looks official.

Outcomes: K5

S1-C2 | LIST

MONTANA
ACCEPTABLE ID
FOR ALCOHOL SALES & SERVICE –
REGISTER REFERENCE

VERIFY ID
★
PROTECT
RESPONSIBLY
IT'S THE LAW

ARM 42.13.902

A person must be at least 21 years of age to purchase or consume alcohol in Montana.

ID CHECK BEST PRACTICES

- ✓ Check every time
- ✓ Examine ID carefully
- ✓ Confirm photo matches
- ✓ Verify expiration date
- ✓ Look for signs of tampering
- ✓ When in doubt, **DON'T SERVE.**

ACCEPTABLE FORMS OF ID (ARM 42.13.902)

1		STATE OR CANADIAN DL OR ID A driver license or identification card issued by any U.S. state, territory, or Canadian province.	✓
2		ARMED SERVICES ID Active duty, retired, or dependent ID card issued by the U.S. Armed Forces.	✓
3		US PASSPORT OR PASSPORT CARD A valid U.S. passport book or passport card.	✓
4		MONTANA TEMPORARY / PROBATIONARY DL OR ID A temporary or probationary driver license or identification card issued by the State of Montana.	✓
5		MONTANA TRIBAL ID An identification card issued by a Montana federally recognized tribe.	✓
6		US PERMANENT RESIDENT CARD Form I-551, also known as a "Green Card."	✓
7		GOVERNMENT-CERTIFIED DIGITAL ID A digital ID verified by a government entity and accepted under Montana law.	✓
8		CERTREADY – MONTANA RESPONSIBLE ALCOHOL SALES & SERVICE TRAINING Proof of completion of Montana's approved alcohol server training.	✓

SELLING OR SERVING ALCOHOL TO MINORS OR INTOXICATED PERSONS IS ILLEGAL. PENALTIES ARE SEVERE.

IT'S YOUR RESPONSIBILITY. ASK. VERIFY. PROTECT.

WHEN IN DOUBT, DON'T SERVE.

Montana law requires acceptance of these forms of ID. | ARM 42.13.902 | Thank you for keeping our communities safe.

MT ALCOHOL OFFSALE M03 s1 c2

Outcomes: K5

S1-C3 | CALLOUT

The seven federally recognized Montana tribes whose IDs are accepted:

Blackfeet Nation

Chippewa Cree (Rocky Boy's)

Confederated Salish & Kootenai (Flathead)

Crow

Fort Belknap (Assiniboine & Gros Ventre)

Fort Peck (Assiniboine & Sioux)

Northern Cheyenne Out-of-state tribal IDs are NOT on the list.

Outcomes: K5

S1-C4 | CALLOUT

****NOT acceptable**

refuse on sight:**

Photocopies or photos of any ID

Expired ID of any kind

School / college / university IDs

Library cards, warehouse-club cards (Costco, Sam's), voter-registration cards

Birth certificates (no photo)

Out-of-state tribal IDs

Screenshots of a digital ID (the credential must verify, not be a static image) "It's all I have" is not a valid reason to make an exception.

Outcomes: K5

Inspecting at the register

S2-C1 | LIST

Outcomes: P1, P2

S2-C2 | CALLOUT

DOB math, made easy.

Subtract 21 from the current year

Use today's month and day

Anyone whose DOB is **after** that date is under 21 Example for May 8, 2026: cutoff is **May 8, 2005**. Born May 8, 2005 or earlier = legal. Born May 9, 2005 or later = under 21.

DOB MATH: QUICK AGE CHECK REFERENCE CARD
MONTANA ALCOHOL SALES

WHEN IN DOUBT, CHECK IT OUT.

STEP 1 TODAY'S YEAR MINUS 21
Subtract 21 from the current year.

STEP 2 USE TODAY'S MONTH AND DAY
Keep the month and day exactly as they are today.

STEP 3 COMPARE THE DOB
DOB AFTER THAT DATE = UNDER 21
DOB ON OR BEFORE THAT DATE = LEGAL

HOW IT WORKS

FIND THE CUTOFF DATE
This is the youngest birthdate that is legal to purchase alcohol today.

CHECK THE ID
Compare the customer's date of birth (DOB) to the cutoff date.

MAKE THE CALL
After = UNDER 21
On or before = LEGAL

WORKED EXAMPLE

TODAY: MONTH DAY YEAR
JUN 02 2025
Today's date

CUTOFF: MONTH DAY YEAR
JUN 02 2004
Anyone born on or before 06/02/2004 is legal to purchase.

TIP
The cutoff date changes every day.
Do the math. Every. Single. Day.

IF THE DOB IS AFTER THE CUTOFF DATE = UNDER 21 **STOP** **DO NOT SELL. IT'S THE LAW.**

POST ON CASHIER'S SIDE OF REGISTER
For quick daily check and legal compliance.

VERIFY, CONFIRM, PROTECT.
Protect your customers, your license, and your business.

RESPONSIBLE TODAY. SAFER TOMORROW.

MODULE 03 — CHECKING IDENTIFICATION
(INCLUDING DIGITAL IDS)

SECTION: INSPECTING AT THE REGISTER

CertReady™ Montana Responsible Alcohol Sales & Service Training

MT ALCOHOL OFFSALE M03 s2 c2

Outcomes: P2

S2-C3 | CALLOUT

The vertical-vs-horizontal layout tell. Most US states issue licenses in **horizontal layout for adults (21+)** and **vertical layout for minors (under 21)**. A vertical license = check the DOB even more carefully. A horizontal license held by someone who looks young still gets the full inspection - but a vertical license should never be cleared without confirming the customer crossed 21 since the card was issued.

Outcomes: P1

S2-C4 | TEXT

Out-of-state IDs at a Montana register. Montana borders four states (Wyoming, Idaho, North Dakota, South Dakota) and is one province from Canadian travelers (Alberta, Saskatchewan, British Columbia). At a typical Montana register, you'll see out-of-state US driver's licenses on roughly one in five transactions and Canadian licenses on ski-resort weekends and during summer through Glacier and Yellowstone. Every one of them is acceptable under ARM 42.13.902 if it's current

but every one of them looks different from a Montana DL, so the fake-ID tells are different too. The single best protection is to spend 30 seconds the next time someone hands you a license from a state you've never seen, and compare it to a known real one. State DMV websites publish public reference images of their license designs; many cashiers print one for each neighboring state and tape them inside the register drawer. The three out-of-state features that catch most fakes: the hologram (does it shift in the light, or is it flat ink), the bottom-edge laminate (real cards have a continuous strip; fakes often have a visible seam), and the corner-radius consistency (a card cut with consumer-grade scissors will have slightly different corner curves from a real DMV-issued card). One tactile check, one tilt-and-look check, one edge check

under ten seconds total once it's a habit, and that ten seconds is the cheapest insurance you have against a personal misdemeanor charge.

MONTANA
OUT-OF-STATE ID
QUICK-REFERENCE FOR CASHIERS

ALL 8 OF THESE ARE **ACCEPTABLE** under ARM 42.13.902 if **current and unexpired**.
See state DMV site for current design.

1 WASHINGTON	2 IDAHO	3 NORTH DAKOTA	4 SOUTH DAKOTA
5 WYOMING	6 ALBERTA (CANADA)	7 SASKATCHEWAN (CANADA)	8 BRITISH COLUMBIA (CANADA)

3-TELL CHECKLIST — Applies to ANY out-of-state card:

1 Tilt the card — hologram should shift in the light, not be flat-printed.	REAL: [Image of card with shifting hologram] FAKE: [Image of card with flat-printed hologram]
2 Feel the bottom edge — real cards have a continuous laminate seam, fakes often have a visible split.	REAL: [Image of card with continuous seam] FAKE: [Image of card with visible split]
3 Check corner radius consistency — DMV-issued cards have uniformly rounded corners.	REAL: [Image of card with rounded corners] FAKE: [Image of card with sharp corners]

CertReady
Montana Responsible Alcohol Sales & Service Training

REMEMBER
If the ID fails any part of the 3-TELL Checklist or appears altered, do not accept it.
When in doubt, don't sell.

Off-Premises Register Reference — 4×6 Print

MT ALCOHOL OFFSALE M03 s2 c4

Outcomes: P1, K5

S2-C5 | CALLOUT

The 'obvious adult' trap. Every cashier has had it happen: a customer walks up with a 12-pack, looks 40, dresses like they just left a construction site, and you're tempted to skip the ID. Don't. The **two highest-risk transactions** in convenience-store data are (1) customers who look obviously under 21 (everyone IDs them; rarely a violation source), and (2) customers who look 30+ and **carry an ID for a 19-year-old who paid them \$20 to buy a case** (almost never IDed; a frequent decoy-program source). Montana's compliance checks under ARM 42.13.907(1)(d) regularly use 25-to-30-year-old decoys precisely because cashiers wave them through. **Every customer buying alcohol gets the same check, full stop.** The 20 seconds you'd save by skipping the check is not worth a \$250 first-offense fine, a \$1,000 second-offense fine, or the criminal exposure under MCA 16-6-305 if it turns out the person was buying as a proxy.

Outcomes: K6, P1

Digital IDs at the register (HB 196)

S3-C1 | TEXT

Effective **October 1, 2025**, Montana accepts government-certified digital IDs. The customer holds them in **Apple Wallet, Google Wallet, or a state-specific app**. To be valid, the credential must be the **OFFICIAL state credential** - not a screenshot of a license, and not a third-party app like ID.me.

Outcomes: P1, K5

S3-C2 | LIST

Outcomes: P1

S3-C3 | CALLOUT

Falsifying a digital ID is a separate offense under MCA 16-6-305 (HB 196 amendment). If you suspect a fake digital ID:

Refuse the sale

Document the incident in the log

Don't try to seize or hold the phone

Call the manager

Outcomes: K5, K6

S3-C4 | TEXT

What the verification interaction actually looks like. A real Montana mobile driver's license presented from Apple Wallet or Google Wallet is **interactive**, not a static image. When the customer taps to present, the screen animates and shows the official Montana state seal, the cardholder's photo, the date of birth, and an expiration date. On Apple Wallet, the photo briefly enlarges as part of the live-presentation animation; on Google Wallet, the seal pulses. A **screenshot of a license**, by contrast, sits motionless - no animation, no state seal that responds to a tap. That's the easiest tell. If the customer hands you their unlocked phone showing a photo of a license, that is not a digital ID under HB 196; it is a screenshot and you cannot accept it. The same applies to PDF copies emailed to themselves, third-party 'ID-storage' apps not certified by the state, and ID.me or similar federal-identity apps not on the Montana acceptable-credentials list. Only the credential issued through the Apple Wallet mDL platform, Google Wallet mDL platform, or the Montana state app counts under ARM 42.13.902 as amended by HB 196.



Montana Responsible Alcohol
Sales & Service Training



OFF-PREMISES (MT-OFF)
Module 03 — Checking Identification
(Including Digital IDs)

DIGITAL-ID vs SCREENSHOT:

ACCEPTABLE vs NOT ACCEPTABLE AT THE REGISTER

DIGITAL IDS AT THE REGISTER (HB 196)

✗ NOT ACCEPTABLE

SCREENSHOT
(STATIC, NO SEAL ANIMATION)



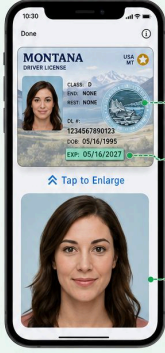
✗ NO OFFICIAL STATE SEAL ANIMATION
Static image—seal is flat and does not move.

✗ NO ANIMATED TRANSITION
No live movement or interaction.

✗ EASY TO ALTER
Screenshots can be edited or reused.

✓ ACCEPTABLE

REAL APPLE WALLET MDL
WITH LIVE STATE-SEAL ANIMATION
& PHOTO ENLARGEMENT



1 OFFICIAL STATE SEAL
Live state seal animates and verifies authenticity.

2 ANIMATED TRANSITION
Dynamic movement confirms this is a real digital ID.

3 EXPIRATION FIELD
Clearly shows expiration date. Always verify.

QUICK CHECK AT THE REGISTER



LOOK FOR THE STATE SEAL
It should be present and animated.



WATCH FOR MOTION
Real mDLs have animated transitions.



CHECK THE EXPIRATION DATE
ID must be valid and not expired.



ENLARGE PHOTO IF NEEDED
Use the wallet feature to confirm it's the same person.



YOUR CALL MATTERS.
When in doubt, don't sell.
Protect yourself and your community.



HB 196 supports the use of official digital IDs. Make sure it's real, valid, and belongs to the person in front of you.

MT ALCOHOL OFFSALE M03 s3 c4

Outcomes: P1, K5

Off-premises decoy tactics

S4-C1 | LIST

Outcomes: K6

S4-C2 | CALLOUT

Watch the parking lot. A pattern that catches a lot of off-premise minor sales: the customer pays cash and quickly walks out to a waiting car with people who look much younger. If the same vehicle keeps coming back with different "buyers," that's a fake-ID-ring or proxy-buyer pattern. Note the plate, tell the manager, and call DOR if it persists.

Outcomes: K6

Two scenarios at the register

S4B-C1 | SCENARIO

Sell or refuse?

Scenario 1: The DOB math. A customer hands you a Montana driver's license. Photo matches. The DOB shows 03/15/2005. Today is May 8, 2026. They want to buy a 12-pack.

Options

1. **a.** Sell - they turned 21 on March 15, 2026, today is after that date
2. **b.** Refuse - they're under 21
3. **c.** Refuse because the year is the cutoff year
4. **d.** Ask for a second ID just in case

Outcomes: P2

S4B-C2 | SCENARIO

What's the right call?

Scenario 2: The shoulder-tap. You're at the register at 9 p.m. A 23-year-old comes in with a 12-pack. As they walk in, you saw them through the window standing in the parking lot with three teenagers who didn't enter. They put the beer on the counter and pull out cash. As you ring it up, the door dings - one of the teens has come in to ask, "are they coming back out?"

Options

1. **a.** Stop the sale and refuse: the parking-lot pattern + the teen entering to ask is a classic shoulder-tap setup
2. **b.** Complete the sale - the buyer is over 21
3. **c.** Confront the teens
4. **d.** Ask the teen for ID before completing the buyer's sale

Outcomes: K6, P1

S4B-C3 | SCENARIO

What's the right move?

Scenario 3: The screenshot. A customer at the register on a Friday at 7 p.m. wants to buy two bottles of premium vodka and a bottle of bourbon - about \$130 total. They open their phone and show you a photo of a Montana driver's license on the screen. The DOB on the photo reads 04/12/1999. The customer says, 'It's the same as a digital ID, the new law says you have to take it.'

Options

1. **a.** Refuse - a screenshot is not a digital ID under HB 196 / ARM 42.13.902; the official credential must present interactively from Apple Wallet, Google Wallet, or the Montana state app
2. **b.** Sell - they're 26 per the DOB on the screenshot
3. **c.** Sell only the beer - refuse the spirits since they're higher value
4. **d.** Call the police

Outcomes: P1, K5

Refusing cleanly at the register

S5-C1 | LIST

Outcomes: P1, K6

S5-C2 | CALLOUT

Don't seize a suspected fake ID. Hand it back. Some cashiers grab the card and say "I'm keeping this." Keeping a suspected fake ID can create legal risk, including a possible property claim. The safer course is to hand it back, refuse, and document.

Hand the ID back

Refuse the sale

Document description, time, ID details (state, ID number, name)

Note the description of the customer for a possible police report Let law enforcement decide what happens to the card.

Outcomes: P1

S5-C3 | LIST

Refusal Log — Montana RASS (Off-Premises)

DESIGNED FOR A CLIPBOARD KEPT UNDER THE REGISTER
 Complete all fields clearly and accurately at the time of refusal.

1		DATE & EXACT TIME OF THE REFUSAL To the minute (e.g., 21:14 not 'around 9 PM')	
2		CASHIER'S NAME & POSITION (e.g., 'cashier on register 2')	
3		REASON FOR REFUSAL (specific: expired ID, ID not on ARM 4.2.13.902 list, DOB under 21, photo did not match, suspected fake, proxy-buyer admission, apparent intoxication)	
4		WHAT ID WAS PRESENTED State of issue, ID number, name on card, DOB; if digital, the wallet platform.	
5		SHORT PHYSICAL DESCRIPTION OF THE CUSTOMER Height, build, hair color, clothing — two sentences max.	
6		WHAT PRODUCT WAS BEING SOLD/REFUSED (e.g., '12-pack Coors Light + bottle Tito's vodka, refused both')	
7		VEHICLE IF VISIBLE License plate, color, make.	
8		MANAGER OR CO-WORKER WHO WITNESSED THE REFUSAL Name + what they observed.	

Protect your license.
Follow the rules.
Document every refusal.

When in doubt, don't sell.
Your call protects everyone.

Refusals are not personal.
They are good business.

Complete clearly and fully.
Accurate logs matter.

KEEP ALL REFUSAL LOGS FOR 5 YEARS PER CERTREADY RECORD-RETENTION POLICY AND DOR AUDIT REQUIREMENTS.

MT ALCOHOL OFFSALE M03 s5 c3

Outcomes: P1, K6

S5-C4 | TEXT

Why the log matters more than the refusal itself. A refusal you don't document is hard to defend later. If the same customer comes back the next night with a friend who buys for them, or if the customer files a discrimination complaint, or if DOR investigators audit your licensee after a compliance check, **the log is the evidence that the refusal happened, when it happened, and why.** A cashier who can show a contemporaneous log entry from 21:14 last Tuesday is in a fundamentally different position from one who says 'I'm sure I refused someone like that.' Make the entry **before your shift ends** - memory degrades fast under retail conditions, and a log entry written three days later from memory is worth roughly nothing in an administrative hearing. The licensee should keep all refusal logs for at least **5 years** to align with CertReady's record-retention policy and Montana DOR's typical audit window.

Outcomes: P1

When to call the manager

S6-C1 | LIST

Outcomes: K6, P1

S6-C2 | CALLOUT

The cashier's protection. Montana DOR routinely investigates licensees for sales-to-minors and sales-to-intoxicated violations. The licensee can be fined under ARM 42.13.101 (progressive penalty schedule: \$250 / \$1,000 / \$1,500 + 20-day suspension / revocation across a 3-year lookback). **The cashier personally** can face criminal exposure under MCA 16-6-305 - up to \$500 fine and up to 6 months in jail per MCA 46-18-212. A contemporaneous log entry showing you refused is the single best protection you have if a compliance check or complaint later questions whether the refusal happened. Refuse → document → escalate. In that order. Every time.

Outcomes: K6, P1

Module 3 Quiz

Passing score: 80%

Q1 | MULTIPLE_CHOICE

Which is NOT acceptable as ID under ARM 42.13.902?

Options

1. **a.** Canadian driver's license
2. **b.** US passport card
3. **c.** Photocopy of ID **Correct**
4. **d.** Montana tribal ID

Correct answer: c. Photocopy of ID

Outcomes: K5

Q2 | MULTIPLE_CHOICE

What did HB 196 add to the acceptable-ID list?

Options

1. **a.** School IDs
2. **b.** Government-certified digital IDs **Correct**
3. **c.** Voter cards
4. **d.** Library cards

Correct answer: b. Government-certified digital IDs

Outcomes: K5

Q3 | MULTIPLE_CHOICE

If today is May 8, 2026, the latest DOB still legal to sell to is:

Options

1. **a.** May 8, 2004
2. **b.** May 8, 2005 **Correct**
3. **c.** January 1, 2005
4. **d.** May 8, 2006

Correct answer: b. May 8, 2005

Outcomes: P2

Q4 | MULTIPLE_CHOICE

A screenshot of a state ID counts as a digital ID under HB 196.

Options

1. **true.** True
2. **false.** False **Correct**

Correct answer: false. False

Outcomes: P1

Q5 | MULTIPLE_CHOICE

An adult tells the cashier 'this 6-pack is for my buddy waiting outside, here's his money.' Best response?

Options

1. a. Sell to the adult; they're 21+
2. ☒ b. Refuse the sale - this is a proxy-buyer admission **Correct**
3. c. Ask the buddy to come in and show ID
4. d. Sell at half price

Correct answer: b. Refuse the sale - this is a proxy-buyer admission

Outcomes: K6

Q6 | MULTIPLE_CHOICE

A vertical-layout US driver's license is typically issued to whom?

Options

1. a. Adults age 21 and older
2. ☒ b. Holders under age 21 **Correct**
3. c. Commercial drivers
4. d. Military personnel

Correct answer: b. Holders under age 21

Outcomes: P1

Q7 | MULTIPLE_CHOICE

How should a cashier handle a suspected fake ID?

Options

1. a. Confiscate the card and tell the customer it's evidence
2. ☒ b. Hand the ID back, refuse the sale, document the incident **Correct**
3. c. Call 911 immediately
4. d. Sell anyway and report later

Correct answer: b. Hand the ID back, refuse the sale, document the incident

Outcomes: P1

Q8 | SHORT_ANSWER

Name two off-premises decoy tactics minors use to obtain alcohol.

Outcomes: K6

Module 4: Sales to Minors and Decoy Tactics

ARM 42.13.101 progressive penalties; how to spot and refuse decoys, proxy buyers, and shoulder-taps

What the law says

S1-C1 | CALLOUT

MCA 16-6-305(1): It is unlawful to sell, give, or otherwise provide alcoholic beverages to a person under 21. Personal criminal penalty for the cashier: up to **\$500 fine**, up to **6 months jail**, or both.

Outcomes: K7

— ARM 42.13.101 — applies to the —
licensee (the store); 3-year rolling window.
— • —

1 1st offense: \$250 fine, no suspension.

2 2nd offense: \$1,000 fine, no suspension.

3 3rd offense: \$1,500 fine +
20-day license suspension.

4 4th offense: license REVOCATION.



The cashier who made the sale separately
faces personal criminal exposure under
MCA 16-6-305 (up to \$500 fine +
6 months jail per MCA 46-18-212).

CertReady

MT ALCOHOL OFFSALE M04 s1 c2

Outcomes: K7

S1-C3 | CALLOUT

Consequences from one sale, by who carries them:

****Cashier**

criminal misdemeanor** under MCA 16-6-305 (up to \$500 fine and/or 6 months jail)

personal liability

****Cashier**

loss of job** under store policy almost universally

****Licensee (store)**

administrative penalty** under ARM 42.13.101 (the progressive fine/suspension/revocation schedule above)

****Licensee (store)**

possible civil dram-shop exposure** under MCA 27-1-710 if the statutory triggers are met (e.g., sale-to-minor without reasonable age verification) and a third party is later injured One missed ID check can produce all of these on the cashier and the store.

Outcomes: K7

S1-C4 | TEXT

Why two penalty tracks exist, and who pays which. Montana's sale-to-minor rules sit on two parallel tracks. **Track one (criminal, against the person who made the sale):** MCA 16-6-305 makes the sale a misdemeanor and MCA 46-18-212 sets the maximum penalty at up to \$500 fine and up to 6 months in county jail. The defendant is the cashier or server personally - not the store. **Track two (administrative, against the licensee):** ARM 42.13.101 applies the progressive schedule (\$250 / \$1,000 / \$1,500 + 20-day suspension / revocation) to the licensee's record over a rolling 3-year lookback. The licensee carries this track. **One sale can trigger both tracks at the same time:** the cashier is charged criminally and the licensee is fined administratively, neither one excludes the other. This is why a single missed ID check has consequences that follow the cashier (criminal record, job loss, possible jail) AND the store (mounting administrative fines, suspension, eventual revocation).

Outcomes: K7

S1-C5 | CALLOUT

The 'intoxicating quantity' exception is narrower than people think. MCA 16-6-305(1)(a) contains a few carve-outs to the under-21 prohibition: parents/guardians may provide alcohol to their own under-21 child, **but only in nonintoxicating quantities and in a private setting** (not at a retail counter); a licensed physician or dentist may provide for medicinal purposes; a pharmacist may dispense on a physician's prescription; an ordained minister or priest may provide in connection with a religious observance. **None of these exceptions permit an off-premise retail sale to a minor**, regardless of what the customer says about parental consent. 'Intoxicating quantity' is defined at MCA 16-6-305(1)(c) as a quantity sufficient to produce a 0.05+ BAC or substantial/visible impairment - meaning even the parent-to-child carve-out caps the amount, it doesn't open a retail channel. A parent who walks in saying 'I'm buying this for my 17-year-old' gets refused. Every time.

Outcomes: K6, K7

Decoy and compliance check programs

S2-C1 | TEXT

Montana DOR runs compliance checks at off-premises retail. A compliance-check participant

often under 21 and supervised by enforcement staff

walks in and tries to buy alcohol. They typically use their real ID and do not lie about their age. **The check happens with no warning.** If you sell, the citation is real and goes on the licensee's record. If you ID and refuse, you pass.

Outcomes: K6

S2-C2 | LIST

Outcomes: K6

S2-C3 | CALLOUT

Treat every sale like it's a compliance check.

Card anyone who LOOKS under 30, every time, no exceptions

Do the DOB math, not just glance at the year

Check expiration

Cross-check with a question if anything feels off The cost of the habit is 5 seconds. The cost of skipping is a fine, your job, and a personal misdemeanor.

Outcomes: K6

Proxy buyers and shoulder-taps

S3-C1 | LIST

Outcomes: K6

S3-C2 | SCENARIO

What do you do?

Scenario 1: The casual admission. A 30-year-old comes to your register with a 12-pack. As you ring up, he says casually, "This is actually for my nephew waiting outside, he just turned 20 and wanted a beer for the game."

Options

1. **a.** Complete the sale - the customer at the register is over 21
2. **b.** Refuse the sale, calmly explain why, document
3. **c.** Sell, but ask the nephew to come show ID first
4. **d.** Pretend you didn't hear and complete the sale

Outcomes: P3, K6

S3-C3 | SCENARIO

What's the right next step?

Scenario 2: The handed-over cash. A 19-year-old you carded and refused walks out. Two minutes later, a 26-year-old you've never seen before walks in, picks up the same 30-pack, comes to the register, and pays in cash. As he leaves, you see him hand the case to the same 19-year-old in the parking lot.

Options

1. **a.** Document the incident, alert the manager, refuse future sales to that 26-year-old
2. **b.** Run out and confront him in the parking lot
3. **c.** Nothing - the sale was to a 26-year-old, the rest is on him
4. **d.** Call 911 right away

Outcomes: P3, K6

S3-C4 | SCENARIO

Sell or refuse?

Scenario 3: The 'I forgot my ID' callback. A regular customer who looks ~25 comes in, picks up a six-pack, and at the register says, 'Oh shoot, left my wallet at home

'I'll just leave the beer here, can you set it aside? I'll be back in 20.' Twenty minutes later, a different person you've never seen

looks late 30s, has an ID showing age 38

walks in, asks if you set aside a six-pack, and pays cash for it.

Options

1. **a.** Refuse - the apparent hand-off pattern (no-ID buyer leaves, different person picks it up) is a proxy red flag; the original customer wasn't ID-cleared
2. **b.** Sell - the second customer is 38 with a valid ID
3. **c.** Sell, but write down both names just in case
4. **d.** Call the manager and let them decide

Outcomes: P3, K6

After an incident: what to do

S4-C1 | LIST

Outcomes: P3, K6

S4-C2 | CALLOUT

A clean refusal protects you on three fronts. First, the log entry is your evidence in any subsequent DOR investigation under ARM 42.13.101

the licensee's progressive-penalty record depends on whether a sale actually happened, and a refused-and-documented transaction is not a sale. Second, the log entry is your evidence in any criminal proceeding under MCA 16-6-305

a cashier who can produce a contemporaneous refusal log is in a fundamentally different position from one who relies on memory months later. Third, the log entry is the data your store uses to spot patterns: same customer trying multiple cashiers, same vehicle returning weekly, same fake-ID design across multiple attempts. Patterns become enforcement when DOR or local police get the call. Your one log entry contributes to the next round of compliance work, even if you never see it.

Outcomes: P3, K6

Module 4 Quiz

Q1 | MULTIPLE_CHOICE

Montana's administrative penalty on a licensee for sale-to-minor offenses is a progressive schedule over a rolling 3-year period. What is the practical takeaway for a licensee?

Options

1. **a.** Every offense carries the same flat fine regardless of history
2. **b.** Penalties escalate with each offense up to license revocation, and a first offense can be reduced to a reprimand if all staff were trained **Correct**
3. **c.** Only the fourth offense has any consequence
4. **d.** The penalty schedule resets after each individual violation

Correct answer: b. Penalties escalate with each offense up to license revocation, and a first offense can be reduced to a reprimand if all staff were trained

Outcomes: K7

Q2 | MULTIPLE_CHOICE

What happens to the licensee on a 4th sale-to-minor offense?

Options

1. **a.** \$5,000 fine
2. **b.** License revocation **Correct**
3. **c.** 30-day suspension
4. **d.** Mandatory retraining

Correct answer: b. License revocation

Outcomes: K7

Q3 | MULTIPLE_CHOICE

A customer who admits at the register that the alcohol is for someone under 21 should still be sold to as long as the buyer themselves is over 21.

Options

1. **true.** True
2. **false.** False **Correct**

Correct answer: false. False

Outcomes: P3, K6

Q4 | MULTIPLE_CHOICE

Which is a shoulder-tap red flag at a Montana off-prem retailer?

Options

1. **a.** An adult is asked at the door 'go in for me' **Correct**
2. **b.** An adult walks in alone
3. **c.** An adult buys a single beer
4. **d.** An adult uses a credit card

Correct answer: a. An adult is asked at the door 'go in for me'

Outcomes: K6

Q5 | MULTIPLE_CHOICE

In a Montana DOR compliance check, the underage decoy will:

Options

1. **a.** Use a fake ID and lie about their age
2. **b.** Use their real ID and not lie about their age **Correct**
3. **c.** Refuse to show any ID
4. **d.** Pretend to be a Montana resident

Correct answer: b. Use their real ID and not lie about their age

Outcomes: K6

Q6 | SHORT_ANSWER

Name two consequences a cashier personally faces from a confirmed sale-to-minor offense.

Outcomes: K7

Module 5: Brief Dram Shop and the Sale-to-Visibly-Intoxicated Rule

Off-premises retailers face dram shop exposure too. Here's the short version.

Off-premise dram shop exposure

S1-C1 | TEXT

Bars and restaurants think of dram shop as their problem. **It isn't only theirs.** If you sell beer or wine to an obviously drunk customer who then drives off and crashes, the off-premise retailer can be sued under **MCA 27-1-710**. The same three triggers that apply to a bar apply to your register.

Outcomes: K8

CertReady

DRAM-SHOP

THREE-TRIGGER FRAMEWORK



MCA 27-1-710 — any ONE trigger creates civil exposure.

1	2	3
SALE TO UNDERAGE WITHOUT REASONABLE AGE VERIFICATION. 	SALE TO A VISIBLY INTOXICATED PERSON. 	FORCED OR COERCED CONSUMPTION / FRAUD ABOUT CONTENT. 
Selling or furnishing alcohol to anyone under 21 without reasonable age verification creates civil liability.	Selling or furnishing alcohol to a visibly intoxicated person creates civil liability.	Forcing or coercing someone to drink, or misrepresenting the alcohol content, creates civil liability.
KEY TAKEAWAY Always verify age with a valid ID before any sale.	KEY TAKEAWAY Watch for signs of intoxication and decline the sale.	KEY TAKEAWAY Never pressure anyone to drink. Be honest about what you serve.

 **ANY ONE TRIGGER IS ALL IT TAKES.**
 If any one of these triggers occurs, your business can be held **CIVILLY LIABLE.**

CertReady Montana Responsible Alcohol Sales & Service Training

MT ALCOHOL OFFSALE M05 s1 c2

Outcomes: K8

S1-C3 | CALLOUT

Off-premise example. A clearly drunk customer comes into a c-store at 11 p.m., buys a 12-pack of beer, drives off, and crashes a quarter mile away. The injured driver's family can sue the c-store under **MCA 27-1-710** if they can show the cashier knew or should have known the customer was visibly intoxicated. "He was just buying it for later" is not a defense if the cues were stacked at the register.

Outcomes: K8

S1-C4 | CALLOUT

The damage caps are the same as on-premise.

\$250K cap on noneconomic damages per event (pain, suffering, loss of consortium)

\$250K cap on punitive damages per event

Economic damages (medical, lost wages) **uncapped**

Plaintiff must serve certified-mail notice within 180 days of the sale or service; missing the 180-day window forfeits the dram-shop claim

2-year statute of limitations for the civil action itself A store's exposure on a serious crash easily exceeds the caps because the medical damages are uncapped.

Outcomes: K8

Refusing at the register

S2-C1 | TEXT

If a customer in line is showing intoxication cues, **refuse the sale**. Document the refusal: time, customer description, cues you observed, what you said. The **five seconds** it takes you to refuse can be the difference between a regular Tuesday and significant dram-shop exposure on your store.

Outcomes: P4

S2-C2 | CALLOUT

Refusal scripts that work at the register:

"I can't sell this tonight, sorry. The law's on me, not on you."

"Tonight isn't going to work for the alcohol

coffee and the snack aisle are open."

"I want to keep my license. I can ring up everything else, just not this." Don't debate. Don't justify. If they push, call the manager. The phrase **"the law's on me"** is the magic phrase: it shifts the refusal from you-versus-them to a legal floor that's not your call to make.

Outcomes: P4

S2-C3 | SCENARIO

What do you do?

Scenario. A customer comes to your register with a 12-pack at 10:30 p.m. He smells strongly of alcohol, is swaying, and slurs slightly when answering "card or cash?" His friend who came in with him is sober and silent.

Options

1. **a.** Sell - he's at the register, not driving
2. **b.** Refuse the sale to him; offer to ring up the sober friend if he wants to buy for himself
3. **c.** Sell only to the friend, regardless of admission
4. **d.** Sell, but ask them to take a Lyft home

Outcomes: P4, K8

Module 5 Quiz

Passing score: 80%

Q1 | MULTIPLE_CHOICE

Which is NOT a MCA 27-1-710 dram shop trigger?

Options

1. **a.** Sale to underage without reasonable check
2. **b.** Sale to visibly intoxicated person
3. **c.** The customer drove home after **Correct**
4. **d.** Forced or coerced consumption

Correct answer: c. The customer drove home after

Outcomes: K8

Q2 | MULTIPLE_CHOICE

Off-premise retailers are subject to MCA 27-1-710?

Options

1. **a.** No, only on-premise establishments
2. **b.** Yes, the same triggers apply **Correct**
3. **c.** Only for spirits
4. **d.** Only after 10 p.m.

Correct answer: b. Yes, the same triggers apply

Outcomes: K8

Q3 | MULTIPLE_CHOICE

Under Montana's dram-shop statute (MCA 27-1-710), which kind of damages is subject to a statutory cap and which is not?

Options

1. **a.** Noneconomic and punitive damages are capped; economic damages (medical bills, lost wages) are not capped **Correct**
2. **b.** All damages are capped at the same amount
3. **c.** Economic damages are capped; pain-and-suffering is unlimited
4. **d.** There are no caps of any kind in Montana dram-shop cases

Correct answer: a. Noneconomic and punitive damages are capped; economic damages (medical bills, lost wages) are not capped

Outcomes: K8

Q4 | MULTIPLE_CHOICE

A clerk who refuses a visibly intoxicated customer at the register and documents the refusal helps protect the store from a future MCA 27-1-710 claim.

Options

1. **true.** True **Correct**
2. **false.** False

Correct answer: true. True

Outcomes: P4

Q5 | MULTIPLE_CHOICE

Are economic damages (medical bills, lost wages) capped under Montana dram-shop?

Options

1. **a.** Yes, capped at \$250,000
2. **b.** Yes, capped at \$1,000,000
3. **c.** No - economic damages are uncapped **Correct**
4. **d.** Only if the plaintiff is a Montana resident

Correct answer: c. No - economic damages are uncapped

Outcomes: K8

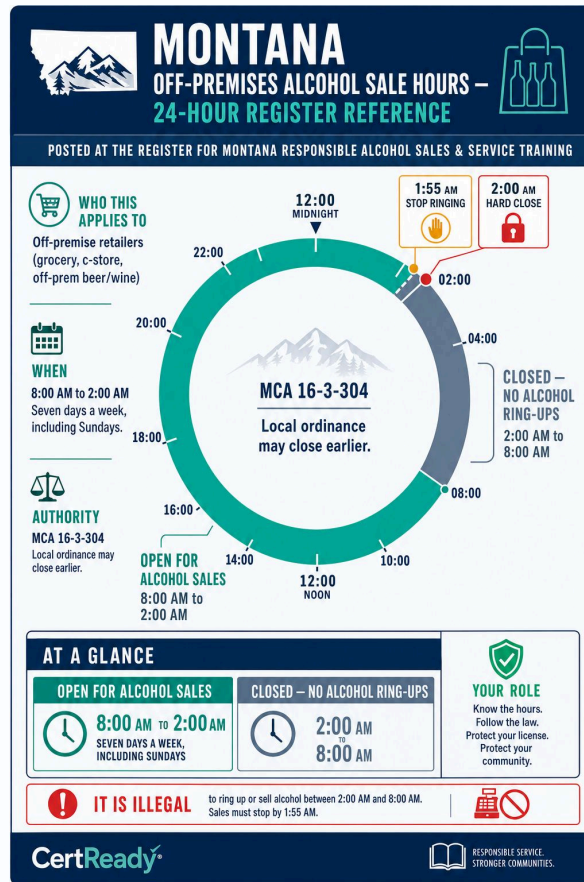
Module 6: Hours, Sealed Containers, and the HB 211 Delivery Overlay

MCA 16-3-304 sale hours; sealed-container takeout; HB 211 delivery for off-premise retail

Hours of sale

S1-C1 | CALLOUT

MCA 16-3-304: Off-premise retailers (grocery, c-store, off-prem beer/wine) may sell from **8 a.m. to 2 a.m.** seven days a week, including Sundays. Local ordinances may impose stricter hours; follow whichever rule applies at your location.



MT ALCOHOL OFFSALE M06 s1 c1

Outcomes: K9

S1-C2 | LIST

Outcomes: K9

S1-C3 | CALLOUT

The 2 a.m. close in practice.

Alcohol cannot be rung up after 2:00 a.m.

once the clock strikes 2, no more alcohol on receipts.

Customers in line at 1:59 can be served, but the alcohol transaction must complete before 2:00.

If the transaction is not complete before 2:00, remove the alcohol from the sale.

Practical: **stop ringing alcohol at 1:55** to give yourself a buffer. Local ordinances may require earlier close in some Montana cities. Know your local rule.

Outcomes: K9, P5

Sealed-container rules

S2-C1 | TEXT

Off-premise sales are **sealed-container only**. The customer leaves with an **unopened bottle, can, growler, or pre-packaged unit**. You cannot fill a personal flask, cup, or open container at the register. The customer also **cannot consume on the premises** - that would require an on-premise license.

Outcomes: K9

S2-C2 | LIST

Outcomes: K9

No-below-posted-price rule

S3-C1 | TEXT

Montana licensees **cannot sell alcohol below the posted price**. The posted price is the legal floor.

Outcomes: K9

S3-C2 | LIST

Outcomes: K9

S3-C3 | CALLOUT

What's typically allowed (verify with licensee).

Posted-price specials

the special price IS the posted price for that hour

Quantity discounts that are properly posted (e.g., "case price = \$4 off the per-12-pack price")

Charity-event pricing with documented charity beneficiary Montana alcohol promotions must comply with the posted-price rule, advertising rules, and any DOR/CARD requirements. Do not run BOGOs, free-drink campaigns, or alcohol-included promotions unless the licensee has confirmed the promotion is lawful

and, where required, secured any necessary approval in advance. When in doubt, ask the licensee.

Outcomes: K9

HB 211 third-party delivery overlay

S4-C1 | TEXT

If your store fulfills alcohol orders via **DoorDash, Uber Eats, Instacart, or Grubhub**, **HB 211** (effective **January 1, 2026**) created a separate licensing and training framework. Off-premises retailers still have compliance responsibilities when fulfilling alcohol orders through a third-party platform - do not assume the platform alone handles every requirement.

Outcomes: K10

S4-C2 | LIST

HB 211 | **THIRD-PARTY ALCOHOL DELIVERY RULES**
MONTANA RESPONSIBLE ALCOHOL SALES & SERVICE
CertReady
EFFECTIVE JANUARY 1, 2026

- 1** BEER + TABLE WINE ONLY
NO SPIRITS
- 2** DRIVER 21+ WITH VALID DL
+ HB 211 BACKGROUND STANDARDS
- 3** DELIVERY HOURS
WITHIN HB 211/CARD WINDOW
- 4** ID-SCANNING
AT DELIVERY
- 5** REFUSE INTOXICATED RECIPIENT
- 6** OR PO-BOX ADDRESS
- 7** FOLLOW ALL HB 211 RECORDKEEPING & COMPLIANCE REQUIREMENTS
KEEP ACCURATE RECORDS

WHAT CAN BE DELIVERED?

ALLOWED
BEER & TABLE WINE ONLY

NOT ALLOWED
NO SPIRITS

MT All deliveries must comply with Montana HB 211 and local jurisdiction requirements.

DRIVER TRAINING REQUIREMENT

RESPONSIBLE SERVER/SALES OR DELIVERY TRAINING

Drivers must complete an approved responsible server/sales or delivery training program BEFORE their first alcohol delivery.

STORE MANAGER REFERENCE — BEHIND THE COUNTER

- Verify driver compliance before using a 3rd-party delivery service.
- Ensure drivers meet age, DL, background, and training requirements.
- Confirm deliveries occur only within the HB 211 window.
- Maintain records and be prepared for review.
- Support a culture of responsibility and safe delivery.

RESPONSIBLE DELIVERY. SAFE COMMUNITIES. STRONGER MONTANA.
Thank you for upholding Montana's standards for responsible alcohol sales & service.

MT ALCOHOL OFFSALE M06 s4 c2

Outcomes: K10

S4-C3 | CALLOUT

What the store cashier needs to know about HB 211. When you pack a third-party-delivery order:

Confirm the order is alcohol-tagged in the platform's system (so the driver knows to ID-check)

Sealed-container only

no opened or partial packs

No spirits

if the order has spirits, refuse the order in the platform; spirits are not deliverable

Note any unusual order patterns (same address ordering 5 times in a week, requests to deliver to a parking lot) and flag the manager

Outcomes: K10

Two scenarios

S5-C1 | SCENARIO

What's the right call?

Scenario 1: The 1:58 a.m. customer. It's 1:58 a.m. on a Friday. A customer walks up with a 12-pack of Bud Light. You haven't yet powered down the alcohol POS.

Options

1. **a.** Ring it up - it's still before 2 a.m.
2. **b.** Refuse - it's too close to 2
3. **c.** Ring it up but mark the receipt 'after hours'
4. **d.** Tell the customer to drink it in the parking lot since the store is about to close

Outcomes: K9, P5

S5-C2 | SCENARIO

What do you do?

Scenario 2: The DoorDash spirits order. A DoorDash order comes in for delivery: 12-pack of beer, 2 bags of chips, and a 750mL bottle of vodka. You're packing the order for the driver who's already pulling up.

Options

1. **a.** Pack everything; the platform handles compliance
2. **b.** Refuse the spirits in the platform; pack the beer + chips; alert the manager that the order had a spirits line
3. **c.** Pack the vodka in a paper bag without labeling so the driver can decide
4. **d.** Cancel the entire order

Outcomes: K10

Practical sealed-container compliance + delivery-driver basics

S6-C1 | TEXT

What 'sealed container' actually means at the register. Off-premise sales must leave the store in **manufacturer-sealed packaging** - the cap, foil, twist-tie, ring-pull, or vacuum seal applied at the bottling plant must be intact when the customer walks out. A bottle of wine you opened to let a friend taste a sample is no longer sellable in that bottle as off-premise product, even with the cork pushed back in. A growler filled at a brewery and sealed in front of the customer (with the date and contents on the seal) is acceptable in many Montana retail contexts; a growler the customer brings back from home and asks you to fill is not. A six-pack with one can missing because a customer wanted to buy 'just one' is not a sealed package; it is loose product. If you would not feel comfortable explaining the seal to a DOR inspector, do not ring it up.

Outcomes: K9, P5

S6-C2 | CALLOUT

****HB 211 third-party delivery**

driver age + product limits. **Effective January 1, 2026, Montana permits third-party alcohol delivery for off-premise retailers under HB 211.** Two non-negotiable rules apply at the moment of handoff: **(1) the** delivery driver must be 21 or older, **and (2)** only beer and table wine may be delivered** through a third-party service

no spirits, regardless of the order amount or the customer's age. At the door, the driver must perform an ID check (the same ARM 42.13.902 list applies) and refuse delivery if the recipient is under 21 or apparently under the influence. From the off-premise retailer's perspective, the practical hand-off rule is that the retailer is on the hook for the third-party platform's compliance even after the product leaves the store: a delivery violation tied to your inventory can still appear on your licensee record under the same progressive-penalty framework. Train cashiers who pack delivery orders to spot the 'beer and table wine only' rule and refuse to pack any spirits for a third-party order.

Outcomes: K10

Module 6 Quiz

Passing score: 80%

Q1 | MULTIPLE_CHOICE

Off-premise alcohol sale hours under MCA 16-3-304:

Options

1. a. Midnight to 6 a.m.
2. ☒ b. 8 a.m. to 2 a.m. **Correct**
3. c. 10 a.m. to midnight
4. d. 9 a.m. to 1 a.m.

Correct answer: b. 8 a.m. to 2 a.m.

Outcomes: K9

Q2 | MULTIPLE_CHOICE

Off-premise retailers can let customers consume the alcohol on the store premises.

Options

1. **true.** True
2. **false.** False **Correct**

Correct answer: false. False

Outcomes: K9

Q3 | MULTIPLE_CHOICE

Third-party alcohol delivery in Montana may include:

Options

1. **a.** Beer and table wine only **Correct**
2. **b.** Spirits only
3. **c.** All alcohol
4. **d.** Anything in inventory

Correct answer: a. Beer and table wine only

Outcomes: K10

Q4 | MULTIPLE_CHOICE

Where do you go in Montana to buy distilled spirits off-premise?

Options

1. **a.** Any grocery store
2. **b.** Any c-store
3. **c.** Agency liquor store **Correct**
4. **d.** Wholesale distributor

Correct answer: c. Agency liquor store

Outcomes: K9

Q5 | MULTIPLE_CHOICE

Montana lets a c-store run a 'two cans for the price of one' beer promotion.

Options

1. **true.** True
2. **false.** False **Correct**

Correct answer: false. False

Outcomes: K9

Q6 | MULTIPLE_CHOICE

What is a practical store-policy cutoff to avoid an after-hours alcohol sale at 2:00 a.m.?

Options

1. **a.** 1:30 a.m.
2. **b.** 1:55 a.m. **Correct**
3. **c.** 1:59 a.m.
4. **d.** 2:00 a.m.

Correct answer: b. 1:55 a.m.

Outcomes: P5

Q7 | MULTIPLE_CHOICE

A DoorDash order from your store includes a 750mL bottle of vodka. The right call is:

Options

1. **a.** Pack it; the platform handles compliance
2. **b.** Refuse the spirits line; pack the rest **Correct**
3. **c.** Pack it without labeling
4. **d.** Cancel the whole order

Correct answer: b. Refuse the spirits line; pack the rest

Outcomes: K10

Q8 | SHORT_ANSWER

Name two HB 211 third-party delivery rules that off-premise retailers must follow.

Outcomes: K10

Final Exam Preview

The student exam is randomized. This review copy shows the full pool and answer explanations so CARD can evaluate coverage and scoring.

MTOFF-001

Montana's on-premises RASS track requires 120 minutes minimum. The off-premises track requires:

1. a. 30 min
2. ☒ b. 60 min **Correct**
3. c. 90 min
4. d. 120 min

Correct answer: b. 60 min

HB 157 sets the off-premises track at 60 minutes (half of on-premises 120 min) - recognizing the simpler register-side workflow.

MTOFF-002

A Montana c-store clerk passes RASS training on June 15, 2026. By when must she renew under Montana law?

1. a. June 15, 2027 (1 yr)
2. b. June 15, 2028 (2 yr)
3. ☒ c. June 15, 2029 (3 yr) **Correct**
4. d. June 15, 2031 (5 yr)

Correct answer: c. June 15, 2029 (3 yr)

MCA 16-4-1005: renewal every 3 years for both on- and off-premises tracks.

MTOFF-003

A customer at the c-store hands you a kombucha labeled 0.4% ABV. Do you treat it as alcohol requiring an ID check under Montana law?

1. a. Yes - any fermented drink counts
2. b. Yes - 0.4% is above the threshold
3. ☒ c. No - 0.4% is below the 0.5% statutory floor **Correct**
4. d. Yes - kombucha always counts

Correct answer: c. No - 0.4% is below the 0.5% statutory floor

MCA 16-1-106(4): a beverage is 'alcoholic' at >0.5% ABV. 0.4% is below the floor - no ID check required, no off-premise sale restrictions apply.

MTOFF-004

What three-prong test does Montana use to decide whether to refuse an alcohol sale at the register?

1. a. BAC over 0.08
2. ☒ b. Actually, apparently, or obviously intoxicated **Correct**
3. c. Visibly impaired only
4. d. Cannot drive

Correct answer: b. Actually, apparently, or obviously intoxicated

MCA 16-3-301(4)(b) sets Montana's three-prong refusal test ('actually, apparently, or obviously intoxicated'). MCA 16-6-304 adds a separate, broader single-prong test ('apparently under the influence'). Both apply to off-premise retail sales.

MTOFF-005

Which is NOT a register-side intoxication cue?

1. a. Slurred speech
2. b. Difficulty counting change
3. ☒ c. Asking for a different brand **Correct**
4. d. Strong alcohol smell

Correct answer: c. Asking for a different brand

Brand preferences aren't a cue. The other three (slurred speech, difficulty handling money, alcohol smell) are.

MTOFF-006

If a customer at the register seems intoxicated but says 'I'm fine,' you may still complete the sale.

1. a. True
2. ☒ b. False **Correct**

Correct answer: b. False

The customer's statement does not override what you can observe. Behavior is the test.

MTOFF-007

A customer hands you four IDs at the register. Under ARM 42.13.902, which one is NOT acceptable?

1. a. Current Canadian driver's license
2. b. US passport card
3. ☒ c. Photocopy of an ID **Correct**
4. d. Montana tribal ID

Correct answer: c. Photocopy of an ID

ARM 42.13.902 requires the original credential. Photocopies never count, regardless of how clear they are.

MTOFF-008

Montana's HB 196 (effective October 1, 2025) added a new acceptable ID type. What was added?

1. a. School IDs
2. ☒ b. Government-certified digital IDs **Correct**
3. c. Voter cards
4. d. Library cards

Correct answer: b. Government-certified digital IDs

HB 196 added government-certified digital IDs (Apple Wallet / Google Wallet / state app). Screenshots and photos still don't count.

MTOFF-009

If today is May 8, 2026, what's the latest legal date of birth for a customer to be 21?

1. a. May 8, 2004
2. ☒ b. May 8, 2005 **Correct**
3. c. January 1, 2005
4. d. May 8, 2006

Correct answer: b. May 8, 2005

Today minus 21 years. Anyone born on or before May 8, 2005 has turned 21 today.

MTOFF-010

A screenshot of a state ID counts as a valid digital ID under HB 196.

1. a. True
2. ☒ b. False **Correct**

Correct answer: b. False

HB 196 requires the credential to come from a government-certified app - not an image stored in the camera roll.

MTOFF-011

When inspecting a physical ID at the register, which is a fake-ID red flag?

1. a. Sharp corners
2. ☒ b. Lamination peeling at edges **Correct**
3. c. Hologram shifts in light
4. d. Photo matches the customer

Correct answer: b. Lamination peeling at edges

Peeling lamination is a tampering indicator. The others are normal traits of a valid ID.

MTOFF-012

Which is a common off-premise underage tactic?

1. a. Wearing a tie
2. **b. Borrowing an older sibling's ID** **Correct**
3. c. Sitting outside for 30 minutes
4. d. Asking the price

Correct answer: b. Borrowing an older sibling's ID

Borrowed-ID is the most common off-premise underage tactic. Compare the photo to the person carefully.

MTOFF-013

An armed-services ID is acceptable for verifying age at a Montana register.

1. **a. True** **Correct**
2. b. False

Correct answer: a. True

ARM 42.13.902 lists armed-services IDs as acceptable.

MTOFF-014

Montana's administrative penalty on a licensee (such as a c-store) for sale-to-minor violations is a progressive schedule over a rolling 3-year window. What does that structure mean in practice, and what can reduce a first offense?

1. a. Every offense carries the same flat fine no matter the licensee's history
2. **b. Penalties escalate with each offense (fine, then a larger fine, then a fine plus license suspension, then revocation), and a first offense can be reduced to a reprimand if the licensee trained all staff** **Correct**
3. c. Only the fourth offense has a consequence; the first three are informal warnings
4. d. The schedule resets to zero after each individual violation

Correct answer: b. Penalties escalate with each offense (fine, then a larger fine, then a fine plus license suspension, then revocation), and a first offense can be reduced to a reprimand if the licensee trained all staff

ARM 42.13.101 sets a progressive schedule over a rolling 3-year window: each offense is penalized more severely than the last, up to license revocation. A documented staff-training program can reduce a first offense to a reprimand, so ongoing RASS training directly lowers the licensee's regulatory risk. The practical point is the escalation and the training incentive, not a specific dollar figure.

MTOFF-015

A Montana c-store has now had four sale-to-minor offenses within 3 years. What administrative consequence applies under Montana's progressive penalty schedule?

1. a. \$5,000 fine
2. ☒ b. License revocation **Correct**
3. c. 30-day suspension
4. d. Mandatory retraining

Correct answer: b. License revocation

Fourth offense in 3 years = revocation. The escalation pattern is the deterrent.

MTOFF-016

A 30-year-old at the register tells you the beer is for their 19-year-old nephew waiting in the car. The buyer is over 21, so you can complete the sale.

1. a. True
2. ☒ b. False **Correct**

Correct answer: b. False

Once the customer announces intent to provide alcohol to someone underage, the sale is unlawful - proxy-buyer admission. Refuse and document.

MTOFF-017

Which is a 'shoulder-tap' red flag at an off-premise retailer?

1. ☒ a. An adult is asked at the door 'go in for me' **Correct**
2. b. An adult walks in alone
3. c. An adult buys one beer
4. d. An adult uses a credit card

Correct answer: a. An adult is asked at the door 'go in for me'

Shoulder-tap pattern: minors hang outside and ask an adult entering the store to buy for them. If you spot it, refuse.

MTOFF-018

What's the maximum personal criminal penalty a Montana clerk who sells alcohol to a minor can face?

1. ☒ a. Up to \$500 fine and/or 6 months jail **Correct**
2. ☐ b. \$1,000 fine only
3. ☐ c. Loss of driver's license
4. ☐ d. Probation only

Correct answer: a. Up to \$500 fine and/or 6 months jail

MCA 16-6-305: criminal misdemeanor with up to \$500 fine and/or 6 months jail. Personal liability separate from any administrative action against the licensee.

MTOFF-019

Which of these is NOT one of the three Montana dram shop triggers?

1. ☐ a. Sale to a minor with no reasonable age check
2. ☐ b. Sale to a visibly intoxicated person
3. ☒ c. Customer drove home after their purchase **Correct**
4. ☐ d. Forced or coerced consumption

Correct answer: c. Customer drove home after their purchase

Driving home alone is not a trigger. The three triggers are: sale-to-minor (no reasonable age check), sale-to-visibly-intoxicated, forced or coerced consumption.

MTOFF-020

Off-premise retailers are subject to MCA 27-1-710 dram shop liability under the same triggers as on-premise.

1. ☒ a. True **Correct**
2. ☐ b. False

Correct answer: a. True

MCA 27-1-710 applies to ANY licensee. Same three triggers, same exposure.

MTOFF-021

A Montana jury awards \$400,000 in noneconomic damages in a dram shop case against a c-store. After the statutory cap, how much can the plaintiff collect for noneconomic damages?

1. a. \$50K
2. b. \$100K
3. ☒ c. \$250K (the statutory cap) **Correct**
4. d. Full \$400K (no cap)

Correct answer: c. \$250K (the statutory cap)

MCA 27-1-710(10): noneconomic damages capped at \$250K per dram shop event. Economic damages (medical, lost wages) are not capped.

MTOFF-022

Your Montana c-store opens at 6 AM. When can you actually start selling alcohol?

1. a. 6 AM (when the store opens)
2. b. 7 AM
3. ☒ c. 8 AM **Correct**
4. d. 9 AM

Correct answer: c. 8 AM

MCA 16-3-304: alcohol-sales window is 8 AM to 2 AM. Even if the store opens earlier, no alcohol sales until 8 AM.

MTOFF-023

Off-premise retailers may let customers consume their purchase on the store premises.

1. a. True
2. ☒ b. False **Correct**

Correct answer: b. False

Off-premise = takeaway only. Allowing on-site consumption changes the license type and is a violation.

MTOFF-024

Your delivery app shows three orders to be picked up at a Montana retailer: a 6-pack of beer, a bottle of vodka, and a bottle of table wine. Which can a third-party driver legally bring under Montana's third-party-delivery law?

1. a. All three
2. b. Only the vodka
3. ☒ c. Only the beer and the wine - HB 211 limits to beer + table wine **Correct**
4. d. None - HB 211 banned third-party delivery

Correct answer: c. Only the beer and the wine - HB 211 limits to beer + table wine

HB 211 explicitly limits third-party alcohol delivery to beer and table wine. Spirits cannot go through third-party delivery.

MTOFF-025

Where in Montana can a customer buy distilled spirits to take home?

1. a. Any grocery store
2. b. Any c-store
3. ☒ c. Agency liquor stores (state-contracted retailers) **Correct**
4. d. Wholesale only

Correct answer: c. Agency liquor stores (state-contracted retailers)

MCA 16-2-101: distilled spirits sold off-premise ONLY through agency liquor stores. C-stores and grocery stores can sell beer and table wine (wine containing less than 16% ABV) but not spirits.

MTOFF-026

Montana c-stores can run 'two-for-one' beer promotions as long as they're not advertised.

1. a. True
2. ☒ b. False **Correct**

Correct answer: b. False

Montana's no-below-posted-price rule prohibits two-for-one and similar promotions, advertised or not.

MTOFF-027

A 19-year-old applies to be a third-party alcohol delivery driver in Montana. Is she old enough under Montana's third-party-delivery law?

1. **a.** Yes - 18 is the minimum
2. **b.** No - HB 211 requires drivers to be 21+ **Correct**
3. **c.** Yes - 19 is fine for beer/wine
4. **d.** No - HB 211 requires drivers to be 25+

Correct answer: b. No - HB 211 requires drivers to be 21+

HB 211 requires third-party alcohol delivery drivers to be 21 or older.

MTOFF-028

A regular heavy drinker who 'doesn't look drunk' is safe to sell alcohol to.

1. **a.** True
2. **b.** False **Correct**

Correct answer: b. False

Tolerance is not a legal defense. Behavior is the test, not appearance or familiarity.

MTOFF-029

A customer at the register has a strong smell of alcohol on their breath, an unsteady gait, and is slurring slightly. What's the right move?

1. **a.** Sell the alcohol; they didn't ask for help
2. **b.** Refuse the sale, calmly explain, and document in the incident log **Correct**
3. **c.** Call the police on the spot
4. **d.** Make them solve a math problem

Correct answer: b. Refuse the sale, calmly explain, and document in the incident log

Refusal + documentation is the right move under MCA 16-3-301(4)(b). Police escalation is rare and usually unnecessary.

MTOFF-030

A customer hands you their phone showing a screenshot of their state ID. What do you do?

1. **a.** Accept it, the photo is clear
2. **b.** Ask them to present the official credential through Apple Wallet, Google Wallet, or the state's app **Correct**
3. **c.** Take a new screenshot for your records
4. **d.** Sell only beer

Correct answer: b. Ask them to present the official credential through Apple Wallet, Google Wallet, or the state's app

A screenshot is not a digital ID under HB 196. The credential must come from a government-certified app.

MTOFF-031

A 22-year-old's Montana driver's license expired yesterday. What do you do?

1. **a.** Sell, the expiration is recent
2. **b.** Refuse - expired IDs are not acceptable under ARM 42.13.902 **Correct**
3. **c.** Sell only beer
4. **d.** Sell only sealed-container beverages

Correct answer: b. Refuse - expired IDs are not acceptable under ARM 42.13.902

ARM 42.13.902 requires a current/valid ID. Expired is expired - refuse and ask for a different valid form.

MTOFF-032

A clerk in Montana who personally sells alcohol to a minor faces what criminal penalty?

1. **a.** Up to \$500 fine and/or 6 months jail (criminal misdemeanor) **Correct**
2. **b.** \$1,000 fine only, no jail
3. **c.** Driver's license suspension
4. **d.** Probation only

Correct answer: a. Up to \$500 fine and/or 6 months jail (criminal misdemeanor)

MCA 16-6-305: criminal misdemeanor with up to \$500 fine, up to 6 months jail, or both.

MTOFF-033

A 30-year-old says at the register: 'this 12-pack is for my buddy waiting in the car, here's his money.' What's your best move?

1. a. Sell, the buyer is over 21
2. **b. Refuse - this is a proxy-buyer admission and the sale is unlawful Correct**
3. c. Sell at half price as a courtesy
4. d. Sell only the buyer's portion

Correct answer: b. Refuse - this is a proxy-buyer admission and the sale is unlawful

Once the customer announces intent to provide alcohol to someone in the car (whose age you haven't verified), the sale is unlawful. Refuse and document.

MTOFF-034

Under what circumstances do off-premise retailers face MCA 27-1-710 dram shop liability?

1. a. Never - only on-premise establishments
2. **b. When one of the three triggers is met (underage sale with no check, sale to visibly intoxicated, forced consumption) Correct**
3. c. Any time a customer they sold to later causes injury
4. d. Only when the customer was at the store for 30+ minutes

Correct answer: b. When one of the three triggers is met (underage sale with no check, sale to visibly intoxicated, forced consumption)

MCA 27-1-710 applies to ANY licensee. The three triggers are the same regardless of license type.

MTOFF-035

May a Montana c-store sell distilled spirits?

1. a. Yes, with a standard off-premise license
2. b. Only with a special permit
3. **c. No - under MCA 16-2-101, off-premise spirits are sold only at agency liquor stores Correct**
4. d. Only on weekdays

Correct answer: c. No - under MCA 16-2-101, off-premise spirits are sold only at agency liquor stores

MCA 16-2-101: distilled spirits are sold off-premise ONLY through agency liquor stores. C-stores and grocery stores can sell beer and table wine (wine containing less than 16% ABV) but not spirits.

MTOFF-036

May a third-party delivery driver deliver vodka in Montana?

1. a. Yes, all alcohol
2. ☒ b. No - HB 211 limits third-party delivery to beer and table wine only **Correct**
3. c. Only with employer permission
4. d. Only if the driver is 30 or older

Correct answer: b. No - HB 211 limits third-party delivery to beer and table wine only

HB 211 explicitly limits third-party alcohol delivery to beer and table wine only.

MTOFF-037

A customer wants to buy beer at 2:15 a.m. at a c-store. Under MCA 16-3-304, may you sell?

1. a. Yes, until 3 a.m.
2. ☒ b. No - the off-premise sale window closes at 2 a.m. **Correct**
3. c. Yes, with manager approval
4. d. Only sealed beer until 3 a.m.

Correct answer: b. No - the off-premise sale window closes at 2 a.m.

MCA 16-3-304: all licensed retail closed for alcohol sales 2 a.m. to 8 a.m. daily. No exceptions.

MTOFF-038

Why does eating slow alcohol absorption?

1. a. Food dilutes the drink chemically
2. ☒ b. Food slows the rate at which the stomach empties into the small intestine, where most alcohol is absorbed **Correct**
3. c. Food makes the alcohol weaker
4. d. Food has no effect on absorption

Correct answer: b. Food slows the rate at which the stomach empties into the small intestine, where most alcohol is absorbed

Most alcohol is absorbed in the small intestine. Food in the stomach delays gastric emptying, slowing absorption.

MTOFF-039

Today is May 8, 2026. A customer's ID shows a date of birth of May 9, 2005. Are they legal to buy alcohol today?

1. a. Yes - they are 21 today
2. b. No - they are still 20; they turn 21 tomorrow **Correct**
3. c. Yes - but only beer
4. d. Only with manager approval

Correct answer: b. No - they are still 20; they turn 21 tomorrow

Today's date minus 21 years = May 8, 2005. Anyone born AFTER May 8, 2005 is still 20. May 9, 2005 is one day after the cutoff, so they turn 21 on May 9, 2026 (tomorrow). Refuse.

MTOFF-040

Montana's licensee sale-to-minor penalty schedule runs on a rolling 3-year window. Why does that window matter to a store that had a violation two years ago?

1. a. It does not matter; each violation is always treated as a brand-new first offense
2. b. The old violation is erased the moment the license is renewed
3. c. A new violation within 3 years of the prior one counts as a repeat, so the penalty steps up the schedule toward suspension and revocation **Correct**
4. d. The window only applies to criminal charges against the server, not the licensee

Correct answer: c. A new violation within 3 years of the prior one counts as a repeat, so the penalty steps up the schedule toward suspension and revocation

ARM 42.13.101 uses a rolling 3-year lookback: repeat offenses inside that window escalate the penalty toward license suspension and revocation rather than resetting. The practical point is that violations compound over time, which is why consistent staff training matters.